

1 **COURT OF APPEALS NO. 84450-4**
2 **IN THE COURT OF APPEALS**
3 **DIVISION 1**
4 **OF THE STATE OF WASHINGTON**
5

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7
8 **ZACKARIAH BENNETT**

9 **Appellant**

10
11 **and**

12
13 **MELVINA MANNING**

14 **Respondent**
15

16 -----
17
18 **APPELLANT’S REPLY**

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INTRODUCTION

COMES NOW BEFORE THE COURT, ZACKARIAH
BENNETT, appellant.

ISSUE

The issue before the court isn't whether or not an expired DVPO should be overturned, but whether it should have existed.

The matter is not moot, as the record is public and falsely alleges domestic violence, which is highly detrimental to reputation, exponentially worse for someone striving to overcome a criminal history by building a good reputation..

It is a public matter ('The Legislature has clearly indicated that there is a public interest in domestic violence protection orders. '), aff'd, 136 Wn.2d 939, 969 P.2d 90 (1998).

PERJURY

Another issue that must be raised is that Mrs. Manning has perjured herself under oath yet again in her answer brief.

She claims that I made no attempts at contact, and virtually ignored the existence of TB from 2008-2019. This is an outright lie.

I have proof of seeking out and utilizing programs like "Read to me Daddy", along with phone calls, letters, and every other available parenting resource, to maintain contact while incarcerated (2008-2010). I have proof of calls from my release in 2010 until mom cut contact with me in 2012 - immediately after I was conned into signing over my parental rights to them. I have video evidence of our father-son bond, healthy & intact, during a visit at

1 their home in 2011; this visit was with approval from my
2 WA-DOC Case Manager. I have proof of communication
3 with my mother, pleading fruitlessly for contact with TB to
4 resume, continuing into 2018.
5 Every Facebook message between my mother and I (2010-
6 2018) is on record [cause#23-2-11352-7 SEA, sub#26, 85-
7 pages].
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10

11 **ARGUMENT**

12 The trial court erred on matters of judicial discretion,
13 matters of law & statute, of constitutional rights, etc.
14

15 The trial court erred in stating: "In regard to your request
16 about Ms. Manning's Ring camera and that recording,
17 actions under both RCW 26.50 and now RCW 7.105 are
18 consider special proceedings so I -- I cannot grant a
19 subpoena or discovery to obtain that information from Ms.
20 Manning." [VRP, pg13 ln-20, to pg14 ln-5]
21
22

23 Basing a ruling on an erroneous view of the law is
24 necessarily an abuse of discretion. Scheib v. Crosby, 160
25 Wn. App. 345, 350, 249 P.3d 184 (2011) ("A trial court
26 would necessarily abuse its discretion if it based its ruling
27 on an erroneous view of the law." (quoting Wash. State
28 Physicians Ins. Exch. & Ass'n v. Fisons Corp., 122 Wn.2d
29 299, 339, 858 P.2d 1054 (1993))).
30
31

32 "An abuse of discretion is found when a judge's decision is
33 exercised on untenable grounds or for untenable reasons.
34 A decision is based on untenable reasons if it is based

1 on an incorrect standard.”

2 Rodriguez v. Zavala, 188 Wn.2d 586, 598, 398 P.3d
3 1071 (2017) (finding abuse of discretion where “trial court
4 applied the wrong legal standard in reviewing the
5 definition of ‘domestic violence’....”).

6
7
8 Questions of law are reviewed de novo on appeal.

9
10 “When an action turns on the correct interpretation of a
11 statute, the standard of review is de novo.”

12 Scheib v. Crosby, 160 Wn. App. 345, 350, 249 P.3d 184
13 (2011) (citing Johnson v. County of Kittitas, 103 Wn. App.,
14 216, 11 P.3d 862 (2000)).

15
16
17 “We review questions of statutory interpretation de novo
18 to give effect to the legislature’s intentions.”

19 Rodriguez v. Zavala, 188 Wn.2d 586, 591, 398 P.3d
20 1071 (2017)

CONCLUSION

I request the final ruling on this cause be reversed and dismissed.

Signed this day, the 29th of November 2023
In Goldendale, WA